

established in the law of evidence.¹¹ The existence of the privilege is conceded by the court below,¹² and, indeed, by the most outspoken critics of governmental claims to privilege.¹³

Judicial experience with the privilege which protects military and state secrets has been limited in this country.¹⁴ English experience has been more extensive, but still relatively slight compared with other evidentiary privileges.¹⁵ Nevertheless, the principles which control the application of the privilege emerge quite clearly from the available precedents. The privilege belongs to the Government and must be asserted by it; it can neither be claimed¹⁶ nor waived¹⁷ by a private party. It is not to be lightly invoked.¹⁸ There must be a formal claim

¹¹ *Totten v. United States*, 92 U. S. 105, 107 (1875); *Firth Sterling Steel Co. v. Bethlehem Steel Co.*, 199 F. 353 (D. C. E. D. Pa. 1912); *Pollen v. Ford Instrument Co.*, 26 F. Supp. 583 (D. C. E. D. N. Y. 1939); *Cresmer v. United States*, 9 F. R. D. 203 (D. C. E. D. N. Y. 1949); see *Bank Line v. United States*, 68 F. Supp. 587 (D. C. S. D. N. Y. 1946), 163 F. 2d 133 (C. A. 2d Cir. 1947). 8 Wigmore on Evidence (3d ed.) § 2212a, p. 161, and § 2378 (g) (5), at pp. 785 *et seq.*; 1 Greenleaf on Evidence (16th ed.) §§ 250-251; Sanford, Evidentiary Privileges Against the Production of Data Within the Control of Executive Departments, 3 Vanderbilt L. Rev. 73, 74-75 (1949).

¹² 192 F. 2d 987, 996.

¹³ See Wigmore, *op. cit. supra*, note 11.

¹⁴ See cases cited *supra*, note 11.

¹⁵ Most of the English precedents are reviewed in the recent case of *Duncan v. Cammell, Laird & Co.*, [1942] A. C. 624.

¹⁶ *Firth Sterling Steel Co. v. Bethlehem Steel Co.*, 199 F. 353 (D. C. E. D. Pa. 1912).

¹⁷ *In re Grove*, 180 F. 62 (C. A. 3d Cir. 1910).

¹⁸ Marshall, C. J., in the *Aaron Burr* trial, I Robertson's Reports 186: "That there may be matter, the production of which the court would not require, is certain What ought to be done, under such circumstances, presents a delicate question, the discussion of which, it is hoped, will never be rendered necessary in this country."